



POLICE DEPARTMENT

March 12, 2026

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-032760
Police Officer Paul Rodriguez	:	
Tax Registry No. 943750	:	
33 Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Joanna Berlin, Esq.
Department Advocate's Office
One Police Plaza, 4th Floor
New York, NY 10038

For the Respondent: Stuart London, Esq.
Martinez & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Paul Rodriguez, on or about October 20, 2024, while off duty and assigned to the 33 Precinct, was unfit for duty due to his consumption of alcohol.

A.G. 304-04, Page 1, Paragraphs 1 & 2

FITNESS FOR DUTY

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on January 28, 2026. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The Department called Sergeant Charlie McCoy, Lieutenant Michael Monahan and Captain Malik Hirani as witnesses. They also offered a number of exhibits including the audio and transcript of the two 911 calls made on the night in question and Body Worn Camera (hereinafter "BWC") footage from several officers on scene. Respondent called Elizabeth Delarosa as a witness and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty as charged and recommend the forfeiture of 30 penalty days, one-year dismissal probation, ordered breath testing and cooperation with alcohol counseling.

ANALYSIS

The following is a summary of the facts which are undisputed. On the evening of October 19, 2024, Respondent went to his ex-wife's apartment to speak to Elizabeth Delarosa (Respondent's ex sister-in-law), who was residing there at the time, about the amount of rent that she was paying to his ex-wife. There were several people gathered at the apartment that night to watch a Yankee game, including his ex-wife, their teenage son, Respondent's ex sister-in-law

and her daughter. This was a social occasion and there were people at the apartment that admittedly consumed alcohol.

Even though he did not live there, in the early morning hours of October 20, 2024, Respondent confronted Ms. Delarosa about the amount of rent she was paying his ex-wife to live in her apartment. According to Respondent, his ex-wife had previously complained to him about this issue and he was going to confront his ex-sister-in-law on his ex-wife's behalf. The conversation between them quickly escalated into a heated verbal dispute. At some point during the argument, Respondent's son called 911 to request police assistance. In the 911 recording, Respondent's son states: "My dad is drunk and screaming and he's hitting people who aren't his kids and I'm scared." (Department Exhibit 2B at 2) A neighbor who resides on the same floor in the apartment building also called 911 to complain about the noise and reported hearing people fighting, specifically a guy and a girl and that he heard a lot of "thumping and screaming." (Department Exhibit 1B at 3)

When police arrived on scene, the officers knocked on the Respondent's ex-wife's apartment door and Respondent opened the door. Respondent greeted the officers and explained they were just having a "family dispute." The officers asked Respondent to step outside into the hallway and he complied. Officer Herrera and another officer stepped inside the apartment where Respondent's ex-wife and Ms. Delarosa were present. Officer Herrera's BWC, (Department Exhibit 7 at 05:20), shows Respondent's ex-wife holding an infant while visibly upset and crying. When Officer Herrera asks her what happened, she responded, in Spanish, "Nothing, I threw water on him because he is being stupid." (*Id.* at 05:32) Officer Herrera then asked whether Respondent is a police officer and Ms. Delarosa, responded in Spanish, "He is a police officer, but he has been drinking." (*Id.* at 05:38)

A few minutes after the first responding officers arrived on scene, Lieutenant Monahan arrived. Lieutenant Monahan's BWC, (Department Exhibit 8 at 02:20), depicts the moment when he was walking down the hallway to the apartment and Officer Dashi informs him of the following: "Basically, we got a dispute. There's flowers everywhere, water everywhere and he's intoxicated." (*Id.* at 02:26) When Lieutenant Monahan spoke to Respondent's ex-wife, she reported that Respondent was arguing with her sister about rent and he was drunk. (*Id.* at 05:32)

At issue in this case is whether Respondent rendered himself unfit for duty by consuming alcohol on the date in question. The Department has argued that Respondent was unfit for duty, as evidenced by the statements made by his family members, Lieutenant Monahan's observation of signs of intoxication on scene and the observations made by Captain Hirani later at the precinct. Respondent has taken the position that he was not unfit for duty. After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Guilty.

The following is a summary of the facts which are in dispute.

Department's Case:

Sergeant Charlie McCoy, an investigator with the Internal Affairs Bureau ("IAB"), testified that he was assigned as lead investigator in Respondent's case in late April 2025. Upon becoming the lead investigator, Sergeant McCoy reviewed the entire case, including the 911 recordings and the witness interviews that were previously obtained. He was also present for Respondent's official Department interview. From his review of the case, Sergeant McCoy determined that there had been two 911 calls made in connection with the dispute that occurred between Respondent and his ex-sister-in-law on October 20, 2024. The first caller was neighbor

who lived on the same floor as Respondent's ex-wife and the second caller was Respondent's adolescent son. (Tr. 59-62)

Sergeant McCoy explained that Respondent was taken from the scene to the 43 Precinct, where two Department supervisors met with Respondent and prepared Fitness for Duty reports. Sergeant McCoy testified that as a result, Respondent's duty status was subsequently modified, and his firearms were removed from his possession. (Tr. 64-65)

During cross-examination, Sergeant McCoy acknowledged that he did not conduct a follow up investigation with the 911 callers to verify the accuracy of the information they initially reported. He also admitted that when he interviewed Respondent's ex-wife, she told him that her sister had been drinking on the night in question, but contradicted her statement at the scene claiming that Respondent has not been drinking. Sergeant McCoy also recollected that Respondent's ex-wife claimed that when her sister drinks her sister's judgment and perception of reality are often impaired. (Tr. 69, 76-79)

Sergeant McCoy explained that by the time he was assigned the case, most of the investigatory work on Respondent's case was finished and his main responsibility was to complete the "closing worksheet." Sergeant McCoy further rationalized that he did not re-interview anyone, conduct any additional interviews or investigatory steps because he had the information he needed. Sergeant McCoy reiterated that he based his recommendation that Respondent be charged with being unfit for duty on the previous recommendations made by other supervisors who personally observed Respondent on the date of the incident. (Tr. 81, 84-85)

Lieutenant Michael Monahan testified that on the date of this incident, he was working in his capacity as night tour platoon commander. He was notified to respond to an apartment in the confines of the 43 Precinct between 2:00 – 3:00 a.m. regarding a domestic dispute. Upon his arrival, Lieutenant Monahan was approached by one of the first responding officers, Officer Dashi, who informed him that there was a family dispute and “he was intox,” referring to Respondent. (Tr. 92-93)

Lieutenant Monahan testified that when he was speaking with Respondent in the hallway, he was approximately one foot away from him. He noticed that Respondent’s shirt was wet and that a mild odor of alcohol was emanating from his breath as they were talking. Lieutenant Monahan also spoke to Respondent’s ex-wife who reported that Respondent had an argument with her sister and because he was drunk, she was trying to get him not to leave. She also admitted to Lieutenant Monahan that she threw water at the Respondent. (Tr. 95-97)

After Lieutenant Monahan finished his investigation on scene, Respondent was transported to the 43 Precinct. Lieutenant Monahan recalled that the next time he interacted with Respondent was in the 43 Precinct’s muster room. During this interaction, Lieutenant Monahan noticed that Respondent still had a mild odor of alcohol, bloodshot eyes, and a flushed face. Lieutenant Monahan estimated that he spent about five minutes with Respondent seated next to him in the muster room. (Tr. 99-100)

Lieutenant Monahan completed a supervisor Fitness for Duty report for Respondent. He testified that although this was his first time completing a Fitness for Duty report, over the course of his twelve-year career with the Department, he has interacted with many intoxicated people. Lieutenant Monahan described the criteria he uses to determine whether a person is intoxicated as: “the odor of alcohol coming from their breath; bloodshot, watery eyes...whether they're

steady on their feet, if their speech is slurred. Are their clothing put together? All of those things.” (Tr. 102)

Lieutenant Monahan testified that based upon the observations he made of Respondent over the course of the night, he found him to be unfit for duty. He further elaborated that he would not have felt comfortable putting Respondent “out on the street” if he had shown up to work in the condition in which he observed him. Lieutenant Monahan added that if he encountered Respondent operating a motor vehicle in that condition, he would have offered him a breathalyzer. (Tr. 104-105)

Captain Malik Hirani testified that he was working in his capacity as a midnight tour platoon duty captain on October 20, 2024, when he was notified of the incident involving Respondent. He instructed the lieutenant on call to meet him at the 43 Precinct. Upon arriving at the command, Captain Hirani commenced his investigation which included speaking with the initial responding officers, reviewing BWC footage, interviewing civilian witnesses and interviewing Respondent. Captain Hirani interviewed Respondent’s ex-wife and obtained her version of events. Captain Hirani recalled that he requested to speak to Respondent’s adolescent son, who called 911, but was denied access to him by both his parents.

Captain Hirani testified that he spent a few minutes with Respondent. He described Respondent as “uncooperative throughout the process” and stated that Respondent refused to provide much information. Captain Hirani observed that there was an odor of alcohol emanating from Respondent as he was speaking with him, that his eyes were watery and that he was “chewing hardly on a piece of gum, as to counter the -- all the alcohol emitting from his person.” Captain Hirani asserted that as an officer who has made hundreds of DWI apprehensions, he is familiar with the signs of a person that is impaired and Respondent “exhibited huge signs of

being impaired.” At the conclusion of his investigation, Captain Hirani deemed Respondent unfit for duty based upon the totality of the circumstances. (Tr. 131- 133)

In addition to the witnesses’ testimony above, the Department Advocate’s Office also offered audio and video recordings in evidence. Specifically, the Tribunal received and listened to two 911 recordings that were made on the night in question, one by Respondent’s son (Department’s Exs. 2A and 2B) and the other by a neighbor (Department Exs. 1A and 1B). The Tribunal also carefully reviewed the BWC footage of five different members of service (“MOS”) that responded to the scene that night. (Department Exs. 5, 6, 7, and 8)

Respondent’s Case:

Respondent testified that on the day in question, he went to his ex-wife’s apartment with the intention of having a conversation with his ex-sister-in-law, Elizabeth Delarosa, about the fact that she was not paying her fair share of the rent. According to Respondent, he left his car idling outside because he was not anticipating staying long. Upon arriving at the apartment, Respondent realized that his ex-wife had invited “Christian folks” over house. (Tr. 149)

Respondent recalled that it was hot inside the apartment which prompted him to remove his hooded sweatshirt, revealing his off-duty firearm. Respondent decided to store his firearm in another room while he was in the apartment. He claimed that he initially put his gun on top of a cabinet, but at his ex-wife’s behest, he stored it in the safe in her room because she was concerned that the children would be in her room. (Tr. 150)

Respondent asserted that he did not consume any alcoholic beverages prior to his arrival at the apartment that night. Respondent admitted that while he was there, he was offered a beer,

but he only drank half of it while he was conversing with the other guests in the house.

Respondent recalled that Ms. Delrosa was also drinking but that his ex-wife does not drink.

Later that night, Respondent confronted Ms. Delarosa about the rising cost of living and how she is “mooching,” by paying only \$500 to live in the apartment. Based upon Ms. Delarosa’s response, Respondent got the impression that she did not like his tone or what he was saying to her. Respondent described Ms. Delarosa as “squaring up and getting very confrontational” during the conversation. Respondent testified that Ms. Delarosa was very upset and got “personal” with him and the next thing he knew, she threw a drink at his face. He perceived this as an intentional act on her part. Respondent could not recall whether it was beer or another type of alcohol that was thrown at him, but he remembered that the liquid hit his face and drenched his shirt. (Tr. 152-153)

After having the drink poured on him, Respondent acknowledged that he became very upset and started yelling and insulting Ms. Delarosa. According to Respondent, the verbal dispute escalated when Ms. Delarosa became aggressive and started attacking him. He claimed that she was throwing things around the house, trying to hit him and even scratched his neck. Respondent also recalled that at some point after he insulted Ms. Delrosa, his ex-wife threw water at him to get him to stop because he “crossed the line.” (Tr. 155, 158)

At this point, Respondent decided he would leave the apartment, but once he was in the hallway, he realized he forgot his gun inside the apartment. When Respondent went back inside the apartment to get his gun, Ms. Delarosa was standing in his way, so he asked his ex-wife to get his gun. At trial, Respondent speculated, “This is what prompted the call from the neighbors. Those mere words that I was saying... get the gun. I wasn't saying get the gun to do anything

malignant. I wasn't going to do anything malicious. I just wanted my firearm so that I can leave.”
(Tr. 156)

Respondent testified that the police arrived at the apartment before he could retrieve his firearm and he was “happy” when they arrived because he wanted to get out of there. He recalled that the responding officers remained on scene with him for approximately forty minutes before transporting him back to the 43 Precinct. Respondent avowed that while enroute to the precinct he told one of the officers that he had an alcoholic beverage spilled on him and the officers told him they would “fix it,” but they never did. (Tr. 159-161, 164)

Once he was at the 43 Precinct, Respondent testified that he was placed in the muster room with his delegate. Respondent recalled that a lieutenant spoke to him about the events that transpired before the captain arrived. Respondent then spoke to the Duty Captain in the XO's office, at which time he was informed that his status was changed because he was found unfit for duty. Respondent maintained, however, that he was not intoxicated on October 20, 2024 and that the smell of alcohol came from having a drink thrown on him not from the consumption of alcohol. (Tr. 162-165)

During cross-examination, Respondent reiterated that he only drank about half a bottle of beer throughout the course of the five hours that he was at his ex-wife's apartment. He affirmed that he was “having a great conversation with the family that was there...just being with [his] kids...taking it all in.” Respondent acquiesced that in hindsight there were things he could have done differently that night but did not regret having the conversation with Ms. Delarosa because it “freed” him of her. (Tr. 169)

Respondent acknowledged that he never told the responding officers that he had been assaulted by Ms. Delarosa. Respondent testified that he was “pretty sure” that he did not mention having an alcoholic beverage spilled on him until he was being transported to the 43 Precinct. He further claimed that he did not tell Captain Hirani that he smelled like alcohol because he had a drink spilled on him because he had already made the decision to modify him. (Tr. 171-174, 177)

Ms. Elizabeth Delarosa testified that Respondent is her brother-in-law and that she has known him for 17 years. She characterized him as a “good person” and that even though he is not married to her sister, she considers him family. Ms. Delarosa explained that on October 20, 2024, she was living with her daughter at her sister’s apartment in the Bronx, along with her sister’s three children. (Tr. 25)

Ms. Delarosa recalled that on the date in question, her sister had company over the apartment to watch a Yankee game. Among the invited guests that evening was Respondent. Ms. Delarosa admitted that she drank one glass of beer over the course of the night. She further asserted that she did not see Respondent drinking any alcoholic beverages, only a juice that he often enjoys. (Tr. 28)

According to Ms. Delarosa, at some point later that night, Respondent confronted her about not paying enough rent to stay in the apartment. The argument between Ms. Delarosa and Respondent grew louder as she became more annoyed with him. Ms. Delarosa claimed that she accidentally threw the beer in her glass on him during the argument because she was so annoyed. She testified that the beer landed on Respondent’s face and shirt. Ms. Delarosa maintained, however, that neither she nor Respondent were intoxicated during this dispute. (Tr. 27, 29-31)

Ms. Delarosa testified that after she spilled beer on Respondent, he left to avoid continuing the argument. As far as Ms. Delarosa remembered, Respondent only came back into the apartment to speak with her sister. When Respondent left, Ms. Delarosa retreated to her room and did not come out again until police arrived. (Tr. 31-33)

Ms. Delarosa acknowledged speaking with the police when they entered the apartment but denied telling them that Respondent was intoxicated. She affirmed that she only told police it was a verbal misunderstanding and that they were “talking in loud voices.” Ms. Delarosa also recounted that her nephew and the other children who live in the apartment all remained in one bedroom during the dispute and were not present for any part of it. (Tr. 32-34)

On cross-examination, Ms. Delarosa was shown BWC footage of Officer Herrera. (Department Ex. 7) Ms. Delrosa was then confronted with the fact that the video shows her telling Officer Herrera that Respondent is “a cop and that he had been drinking.” (Tr. 46) When asked about the discrepancy between what she said to police on the night of the incident and the testimony she gave in court, Ms. Delarosa replied:

Yeah, he's a police -- police. But about drinking, I don't know. Maybe I said -- I said that out of, you know, the -- the hysterical over the -- of that problem. But I cannot go and -- and say that I saw him drinking inside the house because I didn't see him drinking. I only saw him talking to the other people, and that juice that he had in his hand. (Tr. 52)

Respondent offered the audio and transcript of Officer Dashi and Officer Herrera's official Department interviews in evidence in lieu of live testimony. (Department Exhibits 13A and 13B and Department Exhibits 14A and 14B, respectively.) This Tribunal carefully reviewed each officer's official Department interview, and a summary is provided below.¹

¹ Department Advocate's Office offered the audio and transcript of Officer Dashi and Officer Herrera's official Department interview as a part of their original exhibit list, however, they did not offer to admit this evidence as part

Officer Dashi was interviewed, in person, by IAB on October 20, 2024. He testified that on October 19, 2024, he, his partner, and two other officers were dispatched to respond to a dispute involving a firearm inside an apartment in a residential building. Upon exiting the elevator on the 16th floor of said apartment building, he recalled hearing a “loud commotion” coming from an apartment at the end of the hall and seeing a neighbor open his door and confirm that it was he who called, pointing in the direction of the noise and stating, “they’ve been arguing all night.” (Department Ex. 13B at 5)

Officer Dashi testified that following this, he and his partner Officer Herrera knocked on the door where the commotion was coming from, and both a female and male occupant answered. He recalled that the parties were then physically separated, with the male (later identified as Respondent) being told to step outside into the hallway with the other officers. Officer Dashi explained that he and his partner went inside to determine what happened, but the two females inside were Spanish-speaking, so he relied on his partner to relay what the disagreement was about. He recalled being told that there “was basically an argument between the MOS and ... somebody in the house about some sort of rent issue.” (Department Ex. 13B at 6)

Officer Dashi explained that he stepped back into the hallway to identify Respondent and learned that he was a MOS after “he pulled the job ID out.” Following this confirmation, Officer Dashi was informed that Respondent left his firearm inside the apartment and testified that the lieutenant on scene went to retrieve it. He recalled that the lieutenant was led into a bedroom where “the female took it and gave it to the lieutenant.” He recalled that the lieutenant asked

of their case in chief. Respondent did request that this Tribunal review the evidence in support of their theory of the case.

Respondent about his on-duty firearm, because the firearm retrieved was Respondent's off-duty firearm, and Respondent informed him that his on-duty firearm had been left at work.

(Department Ex. 13B at 6-8)

Officer Dashi testified that based upon his brief interaction with Respondent he did not seem intoxicated. He further acknowledged that beyond this brief interaction, he did not have occasion to speak with Respondent. (Department Ex. 13B at 9)

Officer Herrera was also interviewed, in person, by IAB on October 20, 2024. His version of the events that transpired were virtually the same as his partner, Officer Dashi. The main exception was that once inside the apartment, Officer Herrera was the person who communicated most with the parties because he spoke Spanish. He testified that the parties told him that they were having an argument, and the mother of Respondent's children explained to him "that they talk loud," which she described as a characteristic of their culture. (Department Ex. 14B at 5)

Upon entering the apartment, Officer Herrera described seeing a lot of water on the floor and noticed that there were several minors inside, as well as a few adults. He explained that his initial impression was that the family became upset because there were a lot of cops on scene, and that at some point, he called his boss. Officer Herrera stated that he was informed that Respondent was a MOS after Respondent gave his Department identification card to Officer Dashi. (Department Ex. 14B at 5-7)

Officer Herrera recalled that Respondent explained that he, his child's mother, and her sister were having a dispute about the sister not paying enough rent, but he described Respondent's demeanor as "very calm" during his explanation. He further explained that "they

just looked like they were having a normal family dispute,” that there were no injuries, and that nothing was out of the ordinary. (Department Ex. 14B at 6)

When asked to describe Respondent’s demeanor, Officer Herrera testified that Respondent was “very respectful.” He added that he could not tell whether Respondent was intoxicated. Officer Herrera further elaborated that he did not see any alcohol inside the apartment. (Department Ex. 14B at 6-7)

Respondent is charged with being unfit for duty by reason of intoxication due to alcohol consumption. I find that the Department Advocate has met their burden of proof by a preponderance of the credible, relevant evidence that Respondent was in fact unfit for duty on October 20, 2024.

Administrative Guide 304-04, requires that officers be "fit for duty at all times, except when on sick report" and that they "not consume intoxicants to the extent that member becomes unfit for duty." The Department's case relies primarily on the testimony of Lieutenant Monahan and Captain Hirani, who made observations on the date of the incident and prepared written reports documenting their independent determinations that Respondent was unfit for duty. The collective observations of Captain Hirani and Lieutenant Monahan included the odor of alcohol emanating from Respondent’s breath, bloodshot and watery eyes, his flushed face and uncooperative demeanor, all of which are consistent with commonly known indicia of intoxication.

In a case such as this, where the Tribunal must assess the credibility of witnesses who testified to judgments they made based upon first-hand observations, their perceptions must be considered part of that assessment. Perception is influenced by many factors, including the

circumstances under which an event is observed; the witness's state of mind; the prior experience and training of the witness in relevant circumstances; and the amount of time the witness has to process the event they have observed. The evidence adduced at trial supports a finding that, as expected of supervisors of their experience, position, and training Captain Hirani and Lieutenant Monahan were careful, deliberate, and thoughtful as they managed this incident. Given their lengthy careers and experience, this Tribunal has no reason to doubt the veracity of the observations made by Captain Hirani or Lieutenant Monahan or the conclusions drawn in their respective reports. Their independent assessments of Respondent's fitness for duty were reliable under the circumstances presented in this case and there was no evidence of any bias against Respondent.

This Tribunal also found the statements made by Respondent's ex-wife and ex-sister-in-law to police, on scene, that were captured on BWC to be compelling evidence of Respondent's intoxication. When the officers first respond to the scene, Officer Herrera asks Respondent's ex-wife and ex-sister-in-law what happened. Ms. Delarosa, responded in Spanish, "he is a police officer, but he has been drinking." (Department Ex. 7 at 05:38) This statement was made a short time after the police arrived when the dispute between her and Respondent had just ended. This Tribunal finds Ms. Delarosa's statement was made immediately following her argument with Respondent and was reliable due to the lack of time for reflection or fabrication on her part. Ms. Delarosa was providing her impression of Respondent's condition to police at the time without the opportunity to gauge its potential effect on his future with the Department.

Similarly, Respondent's ex-wife was interviewed by police on scene while she was seemingly still under the stress caused by the incident. She can be seen on BWC, visibly shaken and crying while speaking with the officers at first. When Respondent's ex-wife tells Lieutenant

Monahan what happened, she specifically described Respondent as being “drunk” during the argument with her sister. (Department Ex. 8 at 05:32)

Finally, and equally convincing, was the 911 call made by Respondent’s son. (Department Ex. 2A) Within the first ten seconds of the call, Respondent’s son can be heard stating, in a quivering voice, “My dad is drunk and screaming and hitting people who aren’t his kids and I’m scared.” While Respondent’s son was speaking to the 911 operator, there was noise in the background that sounded like people yelling. Although Respondent’s son did not testify at the hearing and was therefore unavailable for either side to question him about the veracity of his statements, what was obvious to this Tribunal was that he made an excited utterance to police as the incident was occurring and, therefore, there was no time for him to concoct a story. Moreover, the statement was spontaneous and unguarded and therefore inherently reliable because Respondent’s son lacked the presence of mind to fabricate a lie at the time he made it. This statement, like most excited utterances, was made in the “heat of the moment,” and this Tribunal considers it a sincere expression of Respondent’s son’s perception, not a calculated misrepresentation. This Tribunal therefore finds Respondent’s son’s 911 statement trustworthy despite his unavailability at trial.

Respondent testified that his son was in a different room than him most of the night and did not observe the argument he had with his ex-sister-in-law. Respondent did not, however, deny interacting with his son earlier in the night. While Respondent’s son may not have observed the interaction between Respondent and Ms. Delarosa, his perception based upon his father’s actions led him to believe that his father was intoxicated. A belief shared by more than one person that evening. I, therefore, do not credit Respondent’s testimony disputing the accuracy of his son’s 911 call as it relates to his sobriety.

This Tribunal was not persuaded by Respondent's self-serving and often combative testimony at trial. Many of the details, as conveyed by Respondent, of what occurred that evening do not make logical sense. Respondent asserted that on the night in question, he went to his ex-wife's apartment with the intended purpose of having a conversation with his ex-sister-in-law about paying what he deemed to be her fair share of rent. According to Respondent, he was not there to socialize, which is why he left his vehicle running outside. However, in reality, Respondent's visit to the apartment lasted for about five hours.

During that time, Respondent testified that he secured his off-duty firearm in a bedroom closet away from his children, he decided to enjoy a beer, he interacted with his children and conversed with the company that was present. (Tr. 151-152) Nevertheless, Respondent left his car outside running the entire time. After the company left, and even though Respondent knew his ex-sister-in-law had been consuming alcohol, he believed that the early hours of that morning was the right time to engage her in a conversation about the rent. Respondent testified that the argument quickly escalated and his ex-sister-in-law threw an alcoholic beverage at him. However, this did not prompt him to leave the apartment. In fact, the verbal altercation between them was still ongoing when police arrived on scene.

Respondent also claimed that the reason he smelled like alcohol was not because he consumed it, but because he had it spilled on him. Yet Respondent testified that he did not mention that to any officer on scene until he was being transported to the precinct, when the officers' BWC were not activated. Therefore, there was no testimonial or documentary evidence presented at trial to corroborate Respondent's assertion. It is especially illogical that Respondent claimed that he did not share that information with Captain Hirani when he was told he was

being found unfit for duty because he felt it was too late and Captain Hirani's mind was already made up. What was true and asserted at the scene, was that water was thrown at Respondent.

Respondent relied, in part on Officer Dashi's official Department interview, to support his contention that he was not intoxicated on the date in question. However, this Tribunal cannot fully credit the testimony Officer Dashi provided at his Department interview about Respondent's condition given that it is in direct contradiction to the information he provided to Lieutenant Monahan on scene. As captured on Lieutenant Monahan's BWC footage, upon his arrival, Officer Dashi approaches him to debrief him on the situation. Officer Dashi unequivocally states "he's intox" when describing Respondent's condition to the supervisor. (Department Ex. 8 at 02:26)

Respondent denied being unfit for duty on the night in question and although he did not refute the descriptions given by various witnesses of his appearance, he claimed that they were a result of his being tired and not intoxicated. This Tribunal has carefully reviewed the BWC footage from that night, listened to the 911 recordings, read the Fitness for Duty reports and reread each witness' testimony. Taking all the surrounding facts and circumstances presented, this Tribunal is persuaded that Respondent was unfit for duty by reason of intoxication due to alcohol consumption and therefore finds him Guilty of the charged misconduct.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel

record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 10, 2007, has one prior adjudication for computer misuse.

The Department requested that the Tribunal recommend a forfeiture of 30 penalty days; dismissal probation; ordered breath testing; and cooperation with counseling. This penalty is consistent with the recommendation provided in the Disciplinary Guidelines for this category of misconduct. I find no aggravating or mitigating evidence in the record. Therefore, under the circumstances of this case, I find this to be an appropriate penalty.

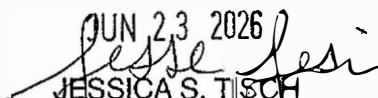
Accordingly, I recommend that Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Administrative Code § 14-115 (d), during which time he is to remain on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. I further recommend that Respondent forfeit 30 penalty days. While I am not specifically recommending ordered breath testing or cooperation with counseling, I find such additional conditions, if imposed by competent authority, to be reasonable in this case.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

JUN 23 2026

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER PAUL RODRIGUEZ
TAX REGISTRY NO. 943750
DISCIPLINARY CASE NO. C-032760

Respondent was appointed to the Department on January 10, 2007. On his three most recent annual performance evaluations, he was rated “Exceptional” for 2022, 2023 and 2024. He has been awarded three medals for Meritorious Police Duty and two medals for Excellent Police Duty.

In 2011, Respondent forfeited fifteen (15) suspension days after pleading guilty to improperly using Department computer systems for personal reasons.

In connection with the instant matter, Respondent was placed on Level 1 Disciplinary Monitoring on December 16, 2024; monitoring remains ongoing.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials